

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
SHADEESHA BROWN and GABRIEL PEREZ,

Plaintiffs,

- against -

THE CITY OF NEW YORK, BRIAN McALEAR,
KEITH HOCKADAY, FREDERICO MARTINEZ,
JOAQUIN MORALES, ROBERT DOWNES,
THOMAS ALBANO, GERARD FLOOD, WILLIAM
HART, TIMOTHY MURPHY, KENYETTA ROUSE,
and THOMAS LONGA,

Defendants
-----X

11CV1068(PKC)

AMENDED COMPLAINT AND
DEMAND FOR JURY TRIAL

ECF CASE

Plaintiffs, by their attorneys, MICHELSTEIN & ASSOCIATES, PLLC , complaining of
the defendants, allege:

NATURE OF THE ACTION

1. This is a civil rights action to redress the defendants' violations of the rights accorded to plaintiffs Shadeesha Brown and Gabriel Perez by the Civil Rights Act of 1871, 42 U.S.C. §1983, by the Constitution of the United States, including the Fourth, Fifth, Ninth and Fourteenth Amendments, and by the laws of the State of New York.

2. Shadeesha Brown and Gabriel Perez are citizens of the United States who were in apartment 5B at 1368 Webster Avenue, Bronx, New York, on August 6, 2010, when defendants Brian McAlear, Keith Hockaday, Frederico Martinez, Joaquin Morales, Robert Downes, Thomas Albano, Gerard Flood, William Hart, Timothy Murphy, Kenyetta Rouse, and Thomas Longa, who were New York City police officers, forcibly entered the apartment, forced plaintiff Gabriel Perez to the floor and handcuffed him, forced plaintiff Shadeesha Brown, at gunpoint, to stand in the

bedroom naked, prohibited plaintiff Shadeesha Brown from putting on clothing or covering her breasts and genital area, forced plaintiff Shadeesha Brown to remain standing in the bedroom naked while numerous police officers passed in and out of the room to gape at her for approximately 40 minutes, handcuffed plaintiff Shadeesha Brown, detained plaintiff Shadeesha Brown and plaintiff Gabriel Perez in the apartment for approximately an hour, then transported the plaintiffs to the PSA7 precinct, where the plaintiffs were imprisoned for approximately four hours and then released without being charged with a crime. The warrantless arrests of plaintiffs Shadeesha Brown and Gabriel Perez were the result of policies and practices adopted by defendant The City of New York forcibly to arrest all people present at the location of the execution of a search warrant and to arrest individuals without probable cause to support the arrests.

JURISDICTION AND VENUE

3. Jurisdiction of this Court is invoked pursuant to the Constitution of the United States, 28 U.S.C. §§1331, 1343(3) and (4), 42 U.S.C. §§1983 and 1988, in that this is an action seeking to redress the violation of the plaintiff's constitutional and civil rights, and 28 U.S.C. §1367(a), in that the state and federal claims arise from a common nucleus of operative facts such that they are so related that they form part of the same case or controversy under Article III of the United States Constitution.

4. Venue is proper in this Court pursuant to 28 U.S.C. §1391(b) and (c) in that all of the events which give rise to the claim occurred within the jurisdiction of the United States District Court for the Southern District of New York, defendants Brian McAlear and Keith Hockaday can be found within the Southern District of New York, and defendant The City of New York is a municipal corporation located in the Southern District of New York which is subject to personal jurisdiction in the Southern District of New York.

PARTIES

5. Plaintiff Shadeesha Brown is a citizen of the United States who resides in the County of New York, City and State of New York.

6. Plaintiff Gabriel Perez is a citizen of the United States who resides in the County of Bronx, City and State of New York.

7. Defendant The City of New York is, and at all times relevant herein was, a municipal corporation created under the laws of the State of New York.

8. At all times relevant herein, defendant The City of New York maintained a police department.

9. Defendant Brian McAlear is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

10. At all times relevant herein, defendant Brian McAlear was acting within the scope of his employment by defendant The City of New York.

11. Defendant Keith Hockaday is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

12. At all times relevant herein, defendant Keith Hockaday was acting within the scope of his employment by defendant The City of New York.

13. Defendant Frederico Martinez is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

14. At all times relevant herein, defendant Frederico Martinez was acting within the scope of his employment by defendant The City of New York.

15. Defendant Joaquin Morales is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

16. At all times relevant herein, defendant Joaquin Morales was acting within the scope of his employment by defendant The City of New York.

17. Defendant Robert Downes is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

18. At all times relevant herein, defendant Robert Downes was acting within the scope of his employment by defendant The City of New York.

19. Defendant Thomas Albano is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

20. At all times relevant herein, defendant Thomas Albano was acting within the scope of his employment by defendant The City of New York.

21. Defendant Gerard Flood is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

22. At all times relevant herein, defendant Gerard Flood was acting within the scope of his employment by defendant The City of New York.

23. Defendant William Hart is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

24. At all times relevant herein, defendant William Hart was acting within the scope of his employment by defendant The City of New York.

25. Defendant Timothy Murphy is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

26. At all times relevant herein, defendant Timothy Murphy was acting within the scope of his employment by defendant The City of New York.

27. Defendant Kenyetta Rouse is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

28. At all times relevant herein, defendant Kenyetta Rouse was acting within the scope of her employment by defendant The City of New York.

29. Defendant Thomas Longa is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

30. At all times relevant herein, defendant Thomas Longa was acting within the scope of his employment by defendant The City of New York.

NOTICES OF CLAIM

31. On August 18, 2010, plaintiff Shadeesha Brown served on the Comptroller of the City of New York a Notice of Claim setting forth the time when, the place where and the manner in which her claims arose.

32. On August 18, 2010, plaintiff Gabriel Perez served on the Comptroller of the City of New York a Notice of Claim setting forth the time when, the place where and the manner in which his claims arose.

33. More than thirty days have elapsed since the plaintiffs' Notices of Claim were served upon defendant The City of New York and said defendant has neglected and/or refused to make an adjustment or payment.

STATEMENT OF CLAIMS

34. Plaintiffs incorporate by reference paragraphs 1 through 33 of this complaint as though the same were set forth fully herein.

35. On August 5 and August 6, 2010, Karen Rodriguez was the lawful tenant of apartment 5B at 1368 Webster Avenue, Bronx, New York.

36. On the night of August 5 - August 6, 2010, plaintiffs Shadeesha Brown and Gabriel Perez were overnight guests of Karen Rodriguez in apartment 5B at 1368 Webster Avenue, Bronx, New York.

37. On August 6, 2010, defendants Brian McAlear, Keith Hockaday, Frederico Martinez, Joaquin Morales, Robert Downes, Thomas Albano, Gerard Flood, William Hart, Timothy Murphy, Kenyetta Rouse and Thomas Longa forcibly entered apartment 5B at 1368 Webster Avenue, Bronx, New York.

38. The entry of defendants Brian McAlear, Keith Hockaday, Frederico Martinez, Joaquin Morales, Robert Downes, Thomas Albano, Gerard Flood, William Hart, Timothy Murphy, Kenyetta Rouse and Thomas Longa into apartment 5B at 1368 Webster Avenue, Bronx, New York, was without the permission of Karen Rodriguez, plaintiff Shadeesha Brown, or plaintiff Gabriel Perez.

39. At the time of the entry of defendants Brian McAlear, Keith Hockaday, Frederico Martinez, Joaquin Morales, Robert Downes, Thomas Albano, Gerard Flood, William Hart, Timothy Murphy, Kenyetta Rouse, and Thomas Longa into apartment 5B at 1368 Webster Avenue, Bronx, New York, plaintiffs Shadeesha Brown and Gabriel Perez were asleep in the nude in one of the bedrooms of the apartment.

40. Upon hearing the noise made by the individual defendants' forcible entry into the apartment, plaintiff Gabriel Perez put on a pair of shorts.

41. Immediately upon entry into the above described apartment, the defendants forcibly entered the bedroom in which plaintiffs Shadeesha Brown and Gabriel Perez had been sleeping.

42. One of the individual defendants forced plaintiff Gabriel Perez to the floor with a knee in this plaintiff's back and handcuffed his hands behind his back.

43. One of the individual defendants pulled the sheet under which plaintiff Shadeesha Brown had been sleeping off her.

44. One of the individual defendants then directed plaintiff Shadeesha Brown, at gunpoint, to stand up.

45. When plaintiff Shadeesha Brown attempted to cover her breasts and genitals with her hands after she stood up, one of the individual defendants, at gunpoint, directed her to put her hands down.

46. One of the individual defendants prohibited plaintiff Shadeesha Brown from putting on any clothing.

47. One of the individual defendants forced plaintiff Shadeesha Brown, at gunpoint, to remain standing naked in the bedroom for approximately 40 minutes.

48. Plaintiff Shadeesha Brown requested to put on her clothes on several occasions during this ordeal, but was refused permission to do so.

49. Plaintiff Shadeesha Brown attempted to cover her breasts and genitals with her hands on several occasions during this ordeal, but on each occasion was instructed by one of the individual defendants, at gunpoint, to keep her hands by her side.

50. After approximately 25 minutes, a male police officer handcuffed plaintiff Shadeesha Brown's wrists behind her back, but left her naked.

51. During the period of time plaintiff Shadeesha Brown was forced to stand naked, numerous police officers who were in apartment 5B continuously entered the bedroom in which she was standing to stare at her.

52. After approximately 40 minutes of being required to stand naked at gunpoint, a female police officer whose name is not known to the plaintiffs arrived and plaintiff Shadeesha

Brown was permitted to put on her clothes.

53. After being detained in apartment 5B for approximately an hour, plaintiffs Shadeesha Brown and Gabriel Perez were transported to the PSA7 Precinct at 737 Melrose Avenue, Bronx, New York, where they were imprisoned for approximately four hours.

54. The plaintiffs were released from the PSA7 Precinct without being charged with any offense.

COUNT I

55. Plaintiffs incorporate by reference paragraphs 1 through 54 of this Complaint as though the same were set forth fully herein.

56. The seizure, arrest, detention and imprisonment of plaintiff Shadeesha Brown was made without any warrant or other legal process directing or authorizing her seizure, arrest, detention, or imprisonment.

57. The seizure, arrest, detention and imprisonment of plaintiff Shadeesha Brown were made without probable cause to believe that she had committed a crime or offense.

58. Plaintiff Shadeesha Brown was aware of her seizure, arrest, detention and imprisonment by the defendants.

59. Plaintiff Shadeesha Brown did not consent to her seizure, arrest, detention or imprisonment.

60. As a result of the foregoing, plaintiff Shadeesha Brown was deprived of her liberty, was imprisoned, was greatly humiliated, was subjected to mental and physical distress, and was subjected to embarrassment and humiliation.

61. Defendants Brian McAlear, Keith Hockaday, Frederico Martinez, Joaquin Morales, Robert Downes, Thomas Albano, Gerard Flood, William Hart, Timothy Murphy, Kenyetta Rouse

and Thomas Longa were acting under color of state law when they seized, arrested, detained and imprisoned plaintiff Shadeesha Brown.

62. Defendants Brian McAlear, Keith Hockaday, Frederico Martinez, Joaquin Morales, Robert Downes, Thomas Albano, Gerard Flood, William Hart, Timothy Murphy, Kenyetta Rouse and Thomas Longa deprived plaintiff Shadeesha Brown of her rights to be free of unlawful searches and seizures, and not to be deprived of her liberty without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by seizing, arresting, detaining and imprisoning plaintiff Shadeesha Brown.

COUNT II

63. Plaintiffs incorporate by reference paragraphs 1 through 62 of this Complaint as though the same were set forth fully herein.

64. Defendants Brian McAlear, Keith Hockaday, Frederico Martinez, Joaquin Morales, Robert Downes, Thomas Albano, Gerard Flood, William Hart, Timothy Murphy, Kenyetta Rouse and Thomas Longa were acting under color of state law when they compelled plaintiff Shadeesha Brown, at gunpoint, to stand naked for 40 minutes while they searched the apartment in which she had been staying overnight.

65. Defendants Brian McAlear, Keith Hockaday, Frederico Martinez, Joaquin Morales, Robert Downes, Thomas Albano, Gerard Flood, William Hart, Timothy Murphy, Kenyetta Rouse and Thomas Longa deprived plaintiff Shadeesha Brown of her right to privacy and her right to due process of law guaranteed by the Fourth, Ninth and Fourteenth Amendments of the Constitution of the United States under color of state law in violation of 42 U.S.C. §1983 by compelling her to stand naked for 40 minutes while they searched the apartment in which she had been staying overnight.

COUNT III

66. Plaintiffs incorporate by reference paragraphs 1 through 65 of this Complaint as though the same were set forth fully herein.

67. The acts complained of were carried out by defendants Brian McAlear, Keith Hockaday, Frederico Martinez, Joaquin Morales, Robert Downes, Thomas Albano, Gerard Flood, William Hart, Timothy Murphy, Kenyetta Rouse and Thomas Longa in their capacities as police officers and employees of defendant The City of New York, with all the actual and/or apparent authority attendant thereto.

68. The acts complained of were carried out by defendants Brian McAlear, Keith Hockaday, Frederico Martinez, Joaquin Morales, Robert Downes, Thomas Albano, Gerard Flood, William Hart, Timothy Murphy, Kenyetta Rouse and Thomas Longa in their capacities as police officers pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

69. Defendant The City of New York implemented, enforced, encouraged and sanctioned a policy, practice and/or custom of arresting all persons present at premises in which a search warrant is being executed regardless of the lack of evidence of commission of a crime by some or all of those persons and arresting persons without warrants and without probable cause to believe they had committed a crime in violation of the Fourth, Fifth, and Fourteenth Amendments of the Constitution of the United States.

70. The aforesaid customs, policies, usages, practices, procedures, and rules of defendant The City of New York include, but are not limited to, the following:

- (a) Defendant The City of New York failed properly to train police officers in the requirements for and limitations of search warrants consistent with the requirements of the Fourth and Fourteenth Amendments of the Constitution of the United States;
- (b) Defendant The City of New York failed properly to train police officers in proper procedures for the execution of search warrants consistent with the requirements of the Fourth and Fourteenth Amendments of the Constitution of the United States;
- (c) Defendant The City of New York failed properly to train police officers in the standards of probable cause and the requirements for the arrest of persons present during the execution of a search warrant;
- (d) Defendant The City of New York failed properly to train police officers in the standards for probable cause for the warrantless seizure and arrest of individuals consistent with the requirements of the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States;
- (e) Defendant The City of New York failed properly to train police officers in the circumstances under which probable cause exists for the warrantless arrest of an individual;
- (f) Defendant The City of New York encouraged or permitted police officers executing search warrants to arrest all persons present at the premises being searched regardless of the absence of probable cause for such arrests;
- (g) Defendant The City of New York failed properly to supervise police officers during the performance of their duties, and more particularly during the execution of search warrants ~~and arrest warrants~~, and during warrantless arrests;
- (h) Defendant The City of New York failed properly to monitor arrests made by its police officers to determine if its police officers were following proper standards for probable cause for the warrantless seizure and arrest of individuals consistent with the requirements of the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States;
- (I) Defendant The City of New York failed properly to supervise and monitor the conduct of its police officers during the execution of search warrants;
- (j) Defendant The City of New York failed to discipline police officers for making warrantless arrests where probable cause for an arrest did not exist.

71. The failure of defendant The City of New York properly to train, supervise, monitor and discipline its police officers constituted deliberate indifference to the rights of persons with whom its police officers come into contact.

72. The forcible entry into the residence in which plaintiff Shadeesha Brown was staying and the seizure, arrest, detention, imprisonment and humiliation of plaintiff Shadeesha Brown by requiring her to remain naked and on display for 40 minutes on August 6, 2010, resulted from the failure of defendant The City of New York properly to train, supervise, monitor and discipline its police officers in the requirements for, the execution of search warrants, the standards of probable cause, the requirements for warrantless arrests, and appropriate conduct during the course of the search of a residence.

73. Defendant The City of New York was acting under color of state law when it formulated and implemented a policy, custom or practice for police officers to arrest all persons present at premises in which a search warrant is being executed regardless of the lack of evidence of commission of a crime by some or all of those persons.

74. Defendant The City of New York was acting under color of state law when it formulated and implemented a policy, custom or practice for police officers to arrest and detain people without an arrest warrant or probable cause to believe they had committed an offense.

75. Defendant The City of New York deprived plaintiff Shadeesha Brown of her rights to be free of unlawful searches and seizures and not to be deprived of her liberty without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States, and her right to privacy guaranteed by the Fourth, Ninth and Fourteenth Amendments of the Constitution of the United States, under color of state law, in violation of 42 U.S.C. §1983, by adopting and enforcing a policy, practice or custom of failing properly to train its police officers in

the requirements for the execution of search warrants, the standards of probable cause, the requirements for warrantless arrests, and appropriate conduct during the course of the search of a residence.

76. The aforesaid conduct of defendant The City of New York violated plaintiff Shadeesha Brown's rights under 42 U.S.C. §1983 and the Fourth, Fifth, *Ninth* and Fourteenth Amendments of the Constitution of the United States.

COUNT IV

77. Plaintiffs incorporate by reference paragraphs 1 through 76 of this Complaint as though the same were set forth fully herein.

78. Upon information and belief, at all times relevant herein, defendant The City of New York was aware from Notices of Claim, from lawsuits, from claims filed with the New York City Police Department and the Civilian Complaint Review Board, and from the New York City Police Department's own observations, that defendants Brian McAlear, Keith Hockaday, Frederico Martinez, Joaquin Morales, Robert Downes, Thomas Albano, Gerard Flood, William Hart, Timothy Murphy, Kenyetta Rouse and Thomas Longa are unfit, ill tempered police officers who have the propensity to commit the acts alleged herein.

79. Upon information and belief, defendant The City of New York failed adequately to investigate prior complaints against these officers.

80. The failure of defendant The City of New York properly to take remedial action to train, retrain, supervise, monitor and discipline police officers for violations of Constitutional rights constituted deliberate indifference to the rights of persons with whom its police officers come into contact.

81. Nevertheless, defendant The City of New York exercised deliberate indifference by failing to take remedial action by failing to train, retrain, supervise, monitor and discipline the officers and improperly retained and utilized them.

82. Defendant The City of New York knew, or should have known, that as a direct result of this policy, practice and/or custom, the Constitutional rights of plaintiff Shadeesha Brown would be violated.

83. Defendant The City of New York implemented, enforced, encouraged, sanctioned and failed to rectify such policy, practice and/or custom with deliberate indifference to and disregard for the civil rights of individuals, and more particularly, the civil rights of plaintiff Shadeesha Brown.

84. Defendant The City of New York was acting under color of state law when it formulated and implemented a policy, custom or practice of failing adequately to investigate complaints against police officers for violating civil rights and to take appropriate remedial action.

85. Defendant The City of New York deprived plaintiff Shadeesha Brown of her rights to be free of unlawful searches and seizures and not to be deprived of her liberty without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States, and of her right to privacy guaranteed by the Fourth, Ninth and Fourteenth Amendments of the Constitution of the United States, under color of state law, in violation of 42 U.S.C. §1983, by adopting and enforcing a policy, practice or custom of failing adequately to investigate complaints against police officers and to take appropriate remedial action to prevent further violations of the civil rights of members of the public, which resulted in the illegal entry into the apartment in which plaintiff Shadeesha Brown had stayed overnight and the seizure, detention, arrest and humiliation of plaintiff Shadeesha Brown on August 6, 2010.

COUNT V

86. Plaintiffs incorporate by reference paragraphs 1 through 85 of this Complaint as though the same were set forth fully herein.

87. The defendants falsely imprisoned plaintiff Shadeesha Brown by seizing, arresting and imprisoning her.

COUNT VI

88. Plaintiffs incorporate by reference paragraphs 1 through 87 of this Complaint as though the same were set forth fully herein.

89. The defendants committed an assault and battery on the person of plaintiff Shadeesha Brown by handcuffing her.

COUNT VII

90. Plaintiff incorporates by reference paragraphs 1 through 89 of this Complaint as though the same were set forth fully herein.

91. The conduct of the defendants in requiring plaintiff Shadeesha Brown to stand naked for 40 minutes while police officers searching the apartment in which she had stayed overnight passed through the room and gaped at her was so outrageous in character and so extreme in degree as to go beyond all possible bounds of decency.

92. The conduct of the defendants in requiring plaintiff Shadeesha Brown to stand naked for 40 minutes while police officers searching the apartment in which she had stayed overnight passed through the room and gaped at her was atrocious and utterly intolerable in a civilized community.

93. The defendants required plaintiff Shadeesha Brown to stand naked for 40 minutes, while police officers searching the apartment in which she had stayed overnight passed through the

room and gaped at her, with the intent to cause severe emotional distress to plaintiff Shadeesha Brown.

94. The defendants required plaintiff Shadeesha Brown to stand naked for 40 minutes, while police officers searching the apartment in which she had stayed overnight passed through the room and gaped at her, in disregard of a substantial probability that their conduct would cause severe emotional distress to plaintiff Shadeesha Brown.

95. As a result of the conduct of the defendants, plaintiff Shadeesha Brown suffered severe emotional distress.

COUNT VIII

96. Plaintiff incorporates by reference paragraphs 1 through 95 of this Complaint as though the same were set forth fully herein.

97. The seizure, arrest, detention and imprisonment of plaintiff Gabriel Perez were made without any warrant or other legal process directing or authorizing his seizure, arrest, detention, or imprisonment.

98. The seizure, arrest, detention and imprisonment of plaintiff Gabriel Perez were made without probable cause to believe that he had committed a crime or offense.

99. Plaintiff Gabriel Perez was aware of his seizure, arrest, detention and imprisonment by the defendants.

100. Plaintiff Gabriel Perez did not consent to his seizure, arrest, detention or imprisonment.

101. As a result of the foregoing, plaintiff Gabriel Perez was deprived of his liberty, was imprisoned, was greatly humiliated, was subjected to mental and physical distress, and was subjected to embarrassment and humiliation.

102. Defendants Brian McAlear, Keith Hockaday, Frederico Martinez, Joaquin Morales, Robert Downes, Thomas Albano, Gerard Flood, William Hart, Timothy Murphy, Kenyetta Rouse and Thomas Longa were acting under color of state law when they seized, arrested, detained and imprisoned plaintiff Gabriel Perez.

103. Defendants Brian McAlear, Keith Hockaday, Frederico Martinez, Joaquin Morales, Robert Downes, Thomas Albano, Gerard Flood, William Hart, Timothy Murphy, Kenyetta Rouse and Thomas Longa deprived plaintiff Gabriel Perez of his rights to be free of unlawful searches and seizures, and not to be deprived of his liberty without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by seizing, arresting, detaining and imprisoning plaintiff Gabriel Perez.

COUNT IX

104. Plaintiff incorporates by reference paragraphs 1 through 103 of this Complaint as though the same were set forth fully herein.

105. The forcible entry into the residence in which plaintiff Gabriel Perez was staying and the seizure, arrest, detention, and imprisonment of plaintiff Gabriel Perez on August 6, 2010, resulted from the failure of defendant The City of New York properly to train, supervise, monitor and discipline its police officers in the requirements for ~~execution of arrest warrants~~, the execution of search warrants, the standards of probable cause, the requirements for warrantless arrests, and appropriate conduct during the course of the search of a residence.

106. Defendant The City of New York was acting under color of state law when it formulated and implemented a policy, custom or practice for police officers to arrest all persons

present at premises in which a search warrant is being executed regardless of the lack of evidence of commission of a crime by some or all of those persons.

107. Defendant The City of New York was acting under color of state law when it formulated and implemented a policy, custom or practice for police officers to arrest and detain people without an arrest warrant or probable cause to believe they had committed an offense.

108. Defendant The City of New York deprived plaintiff Gabriel Perez of his rights to be free of unlawful searches and seizures and not to be deprived of his liberty without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States, and his right to privacy guaranteed by the Fourth, Ninth and Fourteenth Amendments of the Constitution of the United States, under color of state law, in violation of 42 U.S.C. §1983, by adopting and enforcing a policy, practice or custom of failing properly to train its police officers in the requirements for the execution of search warrants, the standards of probable cause, the requirements for warrantless arrests, and appropriate conduct during the course of the search of a residence.

109. The aforesaid conduct of defendant The City of New York violated plaintiff Gabriel Perez' rights under 42 U.S.C. §1983 and the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States.

COUNT X

110. Plaintiffs incorporates by reference paragraphs 1 through 109 of this Complaint as though the same were set forth fully herein.

111. Defendant The City of New York deprived plaintiff Gabriel Perez of his rights to be free of unlawful searches and seizures and not to be deprived of his liberty without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United

States under color of state law, in violation of 42 U.S.C. §1983, by adopting and enforcing a policy, practice or custom of failing adequately to investigate complaints against police officers and to take appropriate remedial action to prevent further violations of the civil rights of members of the public, which resulted in the illegal entry into the apartment in which plaintiff Gabriel Perez had stayed overnight and the seizure, detention, arrest and humiliation of plaintiff Gabriel Perez on August 6, 2010.

COUNT XI

112. Plaintiffs incorporate by reference paragraphs 1 through 111 of this Complaint as though the same were set forth fully herein.

113. The defendants falsely imprisoned plaintiff Gabriel Perez by seizing, arresting and imprisoning him.

COUNT XII

114. Plaintiffs incorporate by reference paragraphs 1 through 113 of this Complaint as though the same were set forth fully herein.

115. The defendants committed an assault and battery on the person of plaintiff Gabriel Perez when they forced him to the floor with a knee in his back and handcuffed his hands behind his back.

PRAYER FOR RELIEF

WHEREFORE, plaintiffs respectfully request that this Court grant the following relief:

A. Award the plaintiffs compensatory damages to be determined by the jury at the time of trial;

B. Award the plaintiffs punitive damages to be determined by the jury at the time of trial;

C. Award the plaintiffs reasonable attorneys' fees and costs, including the fees and costs of experts, incurred in prosecuting this action; and

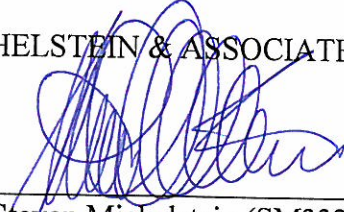
D. Grant such further relief as the Court deems necessary and proper.

JURY TRIAL DEMANDED

The plaintiffs request a jury trial on all questions of fact raised by his Complaint.

Dated: New York, New York
August 18, 2011

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